

Clearances & Approvals for Mining Projects for Mine Plan – FC, EC, LA and Others

GOVERNMENT OF INDIA

MINISTRY OF COAL

LOK SABHA

UNSTARRED QUESTION NO.444 TO BE ANSWERED ON 03.02.2021

Clearance for starting coal mines

444. SHRI BASANTA KUMAR PANDA

- ✓ Will the Minister of COAL be pleased to state :
- ✓ (a) the details of the steps proposed to be taken by the Government towards simplification of all the necessary clearance processes required to start the coal mines in the country; and
- ✓ (b) the details of the steps taken by the Government to improve the coal mining process during the last five years?

ANSWER

MINISTER OF COAL, MINES & PARLIAMENTARY AFFAIRS (SHRI PRALHAD JOSHI)

- ✓ (a) Union Government has launched Single Window Clearance Portal on **11.01.2021**. It is an unified platform that facilitates grant of clearances and approvals required for starting a coal mine in India.
- ✓ Presently, about **19 major approval or clearances are required to be obtained before starting a coal mine in the country** such as approval of Mining Plan and Mine Closure Plan, Grant of Mining Lease, Environment and Forest Clearances, Wild Life Clearance, Clearances related to Safety, Environment, Rehabilitation of project affected families, welfare of workers etc. These approvals or clearances are granted either by central or state governments.
- ✓ Project proponents were required to approach different administrative Ministries and Government Departments separately to apply for the requisite clearances leading to delay in operationalization of coal mines.
- ✓ **Now, the complete process shall be facilitated through Single Window Clearance Portal**, which will map not only the relevant application formats, but also process flow for grant of approval or clearances.
- ✓ The Mining Plan module of the portal was launched on 11.01.2021 and the modules related to other clearances will be added in phases.

ANSWER

MINISTER OF COAL, MINES & PARLIAMENTARY AFFAIRS

(SHRI PRALHAD JOSHI)

- ✓ (b) After cancellation of 204 coal blocks by Hon'ble Supreme Court of India in 2015, reallocation of coal blocks were carried out under Coal Mines(Special Provisions) Act, 2015 through a first ever e-auction for the coal mines.
- ✓ The process of Auction was transparent as the auction of coal mines are being conducted through e-auction mode on electronic platform created by MSTC Limited (a Government of India enterprise).
- ✓ Further, The Mineral Laws (Amendment) Act (March 2020) has been passed which amends the previous Mines & Mineral (Development and Regulation) Act, 1957 and the Coal Mines (Special Provisions) Act, 2015 with an aim to further improve the participation of private entities into the coal sector.
- ✓ Now, the companies need not possess any prior coal mining experience in India in order to participate in the auction of coal and lignite blocks. Unlike previously, there will be a composite license providing for both prospecting and mining activities.
- ✓ Also, the restriction on the use of coal mined by such companies has been removed. Companies will be allowed to carry on coal mining operations for their own consumption, sale or for any other purposes, as may be specified by the Central Government.
- ✓ Further, the prior approval of the Central Government will not be required in granting reconnaissance permit, prospecting license, or mining lease for coal and lignite, in certain cases.

- ✓ Single Window Clearance System is the innovative endeavour of the Ministry of Coal conceptualized and launched on 11.01.2021 that facilitates obtaining clearances and approvals required for the smooth operationalization of coal mines in India as well as augmentation of coal production in the country through a single gateway. Various statutory provisions viz approval of Mining Plan and Mine Closure Plan, Grant of Mining Lease, Environment and Forest Clearances, Consent to Establish, Consent to Operate, Wild Life Clearance Permission for Explosive and Safety Organization (PESO) for storage of Explosive, Land Acquisition Module, Safety Management Plan (with DGMS), Central Ground Water clearance, etc. are pre-requisite for starting of a coal mine.
- ✓ These clearances are being granted by various Central Ministries and State Government departments/agencies. This portal maps all the statutory clearances required (covering Central Ministries as well as State Government departments/agencies) for starting a coal mine. The portal is to map not only the relevant application formats but also map process flow for grant of the approval/clearances and integration with online portals through API.
- ✓ To facilitate ease of doing business, a unified platform of SWCS is designed which includes an already operational module for approval of Mining plan and Mine closure plan in a time-bound manner. The Mining Plan module is live and helps the allottees to get the approval early as compared to the earlier offline process. The allottee can check the status of the application at each and every stage and the time of observation and compliance is limited to 15 days for both parties.

- ✓ The integration of SWCS with Parivesh Portal Version 1.0 and the development of the Consent Management System for Telangana and West Bengal have been successfully completed. However, the Parivesh web portal has now been upgraded to Parivesh 2.0, and integration also completed with NSWS. The next phase of integration involves linking SWCS with Parivesh 2.0 through the NSWS portal. The process of integrating SWCS with NSWS is currently underway with DPIIT.
- ✓ Integration of SWCS portal of Ministry of Coal with National Single Window Clearance System is also being carried out as a part of Digital India for which PING API, Authentication API, Pull Document and Push Redirection API is completed. Project Proponents can register through NSWS Portal after Integration of SWCS portal with NSWS portal, which will be completed in due course of time.

- ✓ Furthermore, digital acceptance of objections under Section 8 (1) of the Coal Bearing Areas (Acquisition & Development) Act, 1957 has been implemented, and the SRS for the Land Acquisition Module has been finalized and Development of module is under process. Development of 5 yearly Submission report of approved mining plan is also under process. Furthermore, the development of Grant of Mine Opening Permission has also been completed and the UAT (User Acceptance Testing) is currently under process. The same shall be available on the live portal soon for the stakeholders. Further, development of exploration module, PL cum ML, etc. are the next major targets to be achieved in the development of this portal.
- ✓ Ministry of Coal has also added in its kitty of SWCS i.e. Project Information & Management Module which was launched on 14.06.2022 and is live on the portal with screens PRIMS Agreement Form, Vested Clearances, Clearances, Amendments/Corrigendum, Production Target Form and Daily Production, Monthly Production report screens, Daily Production Reconciliation, Performance Bank Guarantee, Upfront payments, and Monthly Payments, etc. which is likely to facilitate project proponent as well as Ministry and State officials in monitoring and expeditious implementation of coal mines.

- ✓ The Project Proponent in this module can submit the information related to the project as per CMDPA and Vesting Order. The form (PRIMS form) submitted by the allottee is verified by the Ministry officials at different levels and the movement of the application is visible to the proponent promoting transparency. Further, on approval of PRIMS form, the allottee can upload the Daily Production and dispatch data on the web portal, which helps to monitor the production and dispatch in a profound manner by the Ministry. Further, the allottee can also upload the Status of Clearances, Monthly payments, Performance Bank Guarantee etc. This module (PRIMS) also helps as the straight communication tool between the allottees and the Ministry and helps in the progress of the Mine efficiently to make it operationalize. Further, the provision is being made in the PRIMS module to make a request with the Ministry directly on the web portal for smooth disbursal of their issues in a timely manner.
- ✓ Weblink: <https://swcs.coal.gov.in>

CLEARANCES & APPROVALS FOR MINING PROJECTS



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How Mining projects have been Categorised for EC ?

- **Category A (MoEF&CC and EAC) :**

> 100 ha of mining lease area for non-coal mine lease, > 150 ha of mining lease area for coal mine lease and asbestos mining irrespective of the mining area.

- **Category B (SEIAA and SEAC) :**

≤ 100 ha of mining lease area in respect of non-coal mine lease, ≤ 150 ha of mining lease area in respect of coal mine lease.

Process of obtaining Environmental Clearance for Mining Projects are





- ✓ **Steps In The Environmental Impact Assessment Process For Environmental Clearance For Mining Projects**
- ✓ 1. Identification of Site
- ✓ 2. Preparation of pre-feasibility report for the prior environmental Clearance for mining projects using Form 1 and form 2 given in Annexure IV of EIA Notification, 2006.
- ✓ 3. Submission of filled-in Form 1 along with the pre-feasibility report and draft ToR (for Mining Projects) for EIA studies to the concerned authority, i.e., MoEF&CC, for Category 'A' projects and the SEIAA for Category 'B' projects.
- ✓ 4. After inspecting the documents, the relevant authority declares the results on the portal, whether the EIA project is approved/not. If the project requires a detailed EIA study, the committee issues a ToR letter to the proponent.
- ✓ 5. The hard copy of Draft EIA will be submitted to SPCB, Zila Parishad, Collector, etc., incorporating Terms of reference pointers required for the Public Hearing.
- ✓ 6. After incorporating the Public hearing minutes in the final report, the project proponent has to submit the required documents (i.e. ToR letter, Final EIA Report, Form-2 etc.)
- ✓ 7. Clearance by the concerned authority.



- ✓ **Legislation Applicable To Mining Of Mineral Sectors:** The mining sector has separate legislations covering management, conservation, grant and operation of mining leases, etc. There are also separate legislations for coal mines, nonferrous mines etc. In addition, environmental / forest regulations have been prescribed for all mining activities by the ministry of environment and forests and CPCB.
- ✓ **A Few Crucial Legislations Are Given Below:**
- ✓ • **The Mines Act of 1952**
- ✓ • **The Mines and Mineral (Development and Regulation) Act, 1957**
- ✓ • **Mines Rules, 1955**
- ✓ • **Mineral Concession Rules, 1960**
- ✓ • **Mineral Conservation and Development Rules, 1988**
- ✓ • **State Minor Mineral Concession Rules, 1960**
- ✓ • **Granite Conservation and Development Rule, 1999**
- ✓ • **The Water (Prevention and Control of Pollution) Act, 1974**
- ✓ • **The Air (Prevention and Control of Pollution) Act, 1981**
- ✓ • **The Environment (Protection) Act, 1986**
- ✓ • **The Forest (Conservation) Act, 1988**
- ✓ • **The Wildlife (Protection) Act, 1972**

- ✓ **Generic Structure Of Environmental Impact Assessment Plan**
- ✓ • **Introduction**
- ✓ • **Project Description**
- ✓ • **Analysis of Alternatives (Technology and site)**
- ✓ • **Description of the Environment**
- ✓ • **Anticipated Environmental Impact & Mitigation Measures Environmental Monitoring Programme**
- ✓ • **Additional Studies**
- ✓ • **Project Benefits**
- ✓ • **Environmental Cost Benefit Analysis Environmental Management Plan**
- ✓ • **Summary & Conclusion**
- ✓ • **Disclosure of Consultants engaged**



- ✓ **Team Of Experts Associated With Mining Projects**
- ✓ • **NABET Consultant (EIA Co-ordinator, Team members, FAE, FAA)**
- ✓ • **NABL Approved Lab**
- ✓ • **Civil Engineer**
- ✓ • **Air and noise quality specialist**
- ✓ • **Occupational health**
- ✓ • **Geologist/geo-hydrology**
- ✓ • **Ecologist**
- ✓ • **Transportation Specialist**
- ✓ • **Safety and health specialist**
- ✓ • **Sociologist, etc.**

- ✓ **Mandatory Information For Obtaining EC For Mining Projects**
- ✓ **The summary should clearly present the finding of critical environmental issues and their resolutions. Whenever possible, the summary should use base maps, tables, and figures. Information should be concise with meaningful presentations. It must be able to stand alone as a document. It should necessarily cover the following:**
 - ✓ **• Introduction**
 - ✓ **• Project description and Project benefits**
 - ✓ **• Anticipated environmental impacts and mitigation measures**
 - ✓ **• Additional studies**
 - ✓ **• Environmental Monitoring Program**
 - ✓ **• Environmental Management Plan**
 - ✓ **• Risk Assessment (RA) and Disaster Management Plan (DMP)**

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3. Forest Clearance (FC)

- ✓ **Objective:**

- ✓ Explore the process and requirements for obtaining Forest Clearance for mining on forested lands.

- ✓ **Key Points:**

- ✓ Overview of the Forest (Conservation) Act, 1980, and its relevance to mining.

- ✓ **Process:**

- ✓ Submission of proposals to MoEFCC.
- ✓ Examination by the Forest Advisory Committee.
- ✓ In-principle (Stage-I) approval, followed by compliance with stipulated conditions.
- ✓ Final (Stage-II) approval after satisfying all conditions.

- ✓ **Considerations:**

- ✓ Impact on biodiversity, compensatory afforestation, and rehabilitation of affected communities.

- ✓ **Timeline:**

- ✓ Can take several months to years due to rigorous environmental impact evaluations.

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4. Environmental Clearance (EC)

- ✓ **Objective:**
- ✓ Provide an understanding of the Environmental Clearance process to mitigate mining's environmental impact.
- ✓ **Key Points:** Environmental Clearance under the Environmental Impact Assessment (EIA) Notification, 2006.
- ✓ **Process:**
- ✓ Preparation of an EIA report by accredited agencies.
- ✓ Public consultation to gather feedback from affected stakeholders.
- ✓ Appraisal by the Expert Appraisal Committee (EAC).
- ✓ Grant of EC by MoEFCC or State Environmental Impact Assessment Authorities (SEIAAs).
- ✓ **Considerations:** Air and water pollution control, waste management, land reclamation, and biodiversity conservation.
- ✓ **Timeline:** Typically 6-12 months, depending on the project's size and sensitivity.

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5. Land Acquisition (LA)

- ✓ **Objective:** Understand the Land Acquisition process and associated legal frameworks.
- ✓ **Key Points:**
 - ✓ Land acquisition under the Right to Fair Compensation and Transparency in Land Acquisition, Rehabilitation and Resettlement Act, 2013.
- ✓ **Process:**
 - ✓ Notification and land assessment.
 - ✓ Social Impact Assessment (SIA) to gauge effects on local communities.
 - ✓ Compensation, rehabilitation, and resettlement based on fair market value and provisions for livelihood restoration.
- ✓ **Considerations:** Rights of indigenous communities, compensation adequacy, and long-term social impacts.
- ✓ **Challenges:** Often a complex and time-consuming process due to community concerns and legal objections.

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6. Other Clearances and Permissions

- ✓ **Objective:** Cover additional regulatory clearances required for specific aspects of mining.
- ✓ **Key Points:**
- ✓ Consent to Establish (CTE) and Consent to Operate (CTO) from State Pollution Control Boards as per the Water and Air Acts.
- ✓ Explosive Licenses for blasting operations from the Petroleum and Explosives Safety Organisation (PESO).
- ✓ Wildlife Clearance if the project is near or within protected areas, under the Wildlife (Protection) Act, 1972.
- ✓ Consent for Groundwater Use from the Central Ground Water Authority (CGWA) if groundwater is needed.
- ✓ Any specific local/state regulations depending on the project location and material being mined.

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7. Compliance and Monitoring

- ✓ **Objective:** Highlight the ongoing compliance requirements post-approval.
- ✓ **Key Points:**
 - ✓ Regular monitoring and submission of compliance reports to IBM, MoEFCC, and local authorities.
 - ✓ Annual Environmental Statement and compliance audits.
 - ✓ Role of digital monitoring tools, such as satellite surveillance, to ensure compliance with green cover and rehabilitation commitments.

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8. Case Studies and Practical Examples

- ✓ **Objective:** Provide real-world examples of mining projects in India and their clearance processes.
- ✓ **Examples:**
- ✓ Successful clearances (e.g., Coal India Ltd. projects). Challenges faced in land acquisition and forest clearances.
- ✓ Environmental impact and community engagement in critical mineral mining projects.

9. Summary and Discussion Points

- ✓ Review of each clearance type and their unique challenges.
- ✓ Discussion on sustainable mining practices, regulatory reforms, and their potential to streamline clearance processes.

Thank You

Queries??

Email: ashokmin@iitism.ac.in
Mobile: 8603401161